

STANDARD 1.2.7

NUTRITION, HEALTH AND RELATED CLAIMS

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Part 1 – Purpose and interpretation

To be deleted on 18 January 2016

Editorial Note:

Standard 1.1A.2 is a transitional standard that operates concurrently with this Standard 1.2.7 for a period of three years. During the three-year period Standard 1.1A.2 operates unchanged by this Standard and related variations made by the *Food Standards (Proposal P293 – Nutrition, Health & Related Claims – Consequential) Variation*. A supplier can rely on this Standard or Standard 1.1A.2.

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but not both. At the end of the three-year period, Standard 1.1A.2 will cease to operate. There is no stock-in-trade period at the end of the three-year period.

1 Purpose

This Standard –

- (a) sets out the claims that can be made on labels or in advertisements about the nutritional content of food (described as nutrition content claims) and the claims that can be made on labels or in advertisements about the relationship between a food or a property of a food, and a health effect (described as health claims); and
- (b) describes the conditions under which such claims can be made, and
- (c) describes the circumstances in which endorsements can be provided on labels or in advertisements.

2 Interpretation

In this Standard –

average energy content is as defined in Standard 1.2.8.

biologically active substance is as defined in Standard 1.2.8.

biomarker means a measurable biological parameter that is predictive of the risk of a serious disease when present at an abnormal level in the human body.

carbohydrate is as defined in Standard 1.2.8.

dietary fibre is as defined in Standard 1.2.8.

endorsement means a nutrition content claim or a health claim that is made with the permission of an endorsing body.

endorsing body is a not-for-profit entity which has a nutrition- or health-related purpose or function that permits a supplier to make an endorsement.

fat is as defined in Standard 1.2.8.

food group means any of the following groups –

- (a) bread (both leavened or unleavened), grains, rice, pasta and noodles;
- (b) fruit, vegetables, herbs, spices and fungi;
- (c) milk and milk products as standardised in Part 2.5 and analogues derived from legumes and cereals mentioned in Column 1 of the Table to clause 3 in Standard 1.3.2;
- (d) meat, fish, eggs, nuts, seeds and dried legumes;
- (e) fats including butter, edible oils and edible oil spreads.

fruit means the edible portion of a plant or constituents of the edible portion that are present in the typical proportion of the whole fruit (with or without the peel or water), but does not include nuts, spices, herbs, fungi, legumes and seeds.

fvnl is as defined in item 4 of Schedule 5 for the purpose of calculating V points.

general level health claim means a health claim that is not a high level health claim.

gluten means the main protein in wheat, rye, oats, barley, triticale and spelt relevant to the medical conditions coeliac disease and dermatitis herpetiformis.

glycaemic index (GI) means a measure of the blood glucose raising ability of the digestible carbohydrates in a given food as determined by a recognised scientific method.

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Editorial note:

A method for determining glycaemic index of carbohydrates in foods is described in the Standards Australia Australian Standard Glycemic index of foods (AS 4694 – 2007). In particular, glycaemic index testing is carried out by the determination of glycaemic (blood glucose) responses in human volunteers (in-vivo testing).

The objective of AS 4694 - 2007 is to establish the recognised scientific method as the standard method for the determination of glycaemic index (GI) in foods.

health claim means a claim which states, suggests or implies that a food or a property of food has, or may have, a health effect.

Editorial note:

For the definition of claim, see clause 2 of Standard 1.1.1.

health effect means an effect on the human body, including an effect on one or more of the following –

- (a) a biochemical process or outcome;
- (b) a physiological process or outcome;
- (c) a functional process or outcome;
- (d) growth and development;
- (e) physical performance;
- (f) mental performance;
- (g) a disease, disorder or condition.

high level health claim means a health claim that refers to a serious disease or a biomarker of a serious disease.

meets the NPSC means that the nutrient profiling score of a food described in Column 1 of Schedule 4 is less than the number specified for that food in Column 2 of that Schedule.

monounsaturated fatty acids is as defined in Standard 1.2.8.

NPSC means the nutrient profiling scoring criterion.

nutrient profiling score means the final score calculated pursuant to the method described in Schedule 5.

nutrition content claim means a claim about –

- (a) the presence or absence of –
 - (i) a biologically active substance; or
 - (ii) dietary fibre; or
 - (iii) energy; or
 - (iv) minerals; or
 - (v) potassium; or
 - (vi) protein; or
 - (vii) carbohydrate; or
 - (viii) fat; or
 - (ix) the components of any one of protein, carbohydrate or fat; or
 - (x) salt; or
 - (xi) sodium; or
 - (xii) vitamins; or

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(b) glycaemic index or glycaemic load;

_____ that does not refer to the presence or absence of alcohol, and is not a health claim.

Editorial note:

For the definition of claim, see clause 2 of Standard 1.1.1.

polyunsaturated fatty acids is as defined in Standard 1.2.8.

property of food means a component, ingredient, constituent or other feature of food.

reference food means a food that is –

- (a) _____ of the same type as the food for which a claim is made and that has not been further processed, formulated, reformulated or modified to increase or decrease the energy value or the amount of the nutrient for which the claim is made; or
- (b) _____ a dietary substitute for the food in the same food group as the food for which a claim is made.

Editorial note:

An example for paragraph (a) is reduced fat milk compared to whole milk (the reference food).
An example for paragraph (b) is milk alternatives compared to milk products (the reference food).

salt is as defined in Standard 2.10.2.

saturated fatty acids is as defined in Standard 1.2.8.

serious disease means a disease, disorder or condition which is generally diagnosed, treated or managed in consultation with or with supervision by a health care professional.

small package is as defined in Standard 1.2.1.

sugars is as defined in Standard 1.2.8.

trans fatty acids is as defined in Standard 1.2.8.

vegetable means the edible portion of a plant or constituents of the edible portion that are present in the typical proportion of the whole vegetable (with or without the peel or water) but does not include nuts, spices, herbs, fungi, dried legumes (including dried legumes that have been cooked or rehydrated) and seeds.

Part 2 – Claims framework and general principles

3 Nutrition content claims or health claims not to be made about certain foods

A nutrition content claim or health claim must not be made about –

- (a) _____ kava; or
- (b) _____ a food that contains more than 1.15% alcohol by volume, other than a nutrition content claim about energy content or carbohydrate content; or
- (c) _____ an infant formula product.

Editorial note:

Kava is standardised in Standard 2.6.3.

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Infant formula product is standardised in Standard 2.9.1.

4 Standard does not apply to certain foods

This Standard does not apply to food that is –

- (a) intended for further processing, packaging or labelling prior to retail sale; or
- (b) delivered to a vulnerable person by a delivered meal organisation; or
- (c) provided to a patient in a hospital or other similar institution, other than food in a package.

Editorial Note:

The facilities that are 'other similar institutions' are described in the table to clause 8 of Standard 1.2.1.

5 Standard does not apply to certain claims or declarations

This Standard does not apply to –

- (a) a claim that is expressly permitted by another Standard in this Code; or
- (b) a claim about the risks or dangers of alcohol consumption or about moderating alcohol intake; or
- (c) a declaration that is required by the Act.

6 Form of food to which provisions of this Standard apply

If this Standard imposes a prerequisite, condition, qualification or any other requirement on the making of a claim, that prerequisite, condition, qualification or requirement applies to the form of the food as determined in accordance with the Table.

Table to clause 6

Form of the food Organisation Name <i>Free text/cut and paste from a word document</i>	
The food as sold if the food can be either prepared with other food or consumed as sold. Title of Job <i>Free text or if chosen automated population from a chosen transferable role template</i>	Transition Coordinator: Children to Adult Services
Scope of Job <i>-sets the context, job profile Free text or from automated population from chosen TRT</i>	The food as prepared if the food is required to be prepared and consumed according to directions. This Role includes a range of activities at Level 5 which will be required to support a young person with learning disabilities in the transition to adult services. The provision of this support may be only one aspect of the overall job carried out by a worker. Support for the transition to adult services may be provided by several members of an integrated care team and/or by a range of agencies. A successful transition requires a person centered approach with four key elements, namely Early Planning, Communication, Multi-agency Coordinated Working and Preparation for Adulthood. The activities in this Role are linked to National Occupational

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	Standards (NOS). NOS define the knowledge, understanding required and the criteria for competent performance of each activity. The NOS within this Role have been taken from the Learning Disability Transition Pathway Competency Framework developed by Health Education England in the West Midlands in partnership with Skills for Health. The lists of NOS within this role refer to the function of supporting transition to adult services and they do not necessarily include all of the other activities which a person supporting transition may carry out when performing other aspects of their job. The lists of NOS are intended as a guide to commissioners, leaders and education providers and articulate the skills required at Level 5 within a team/service in order to support a young person with learning disabilities in the transition to adult services.
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Responsible to
Free text

Accountable to
Free text

Contract type and working hours
Free text

Pay Grade
Free text

Career Framework Level
Short descriptor from Career Framework automated population from chosen TRT

The food after it is reconstituted with water and ready for consumption if the food requires reconstitution. They are able to use knowledge to solve problems creatively, make judgements and actively contribute to service and self-development. They may have responsibility for the comprehensive, specialised, factual and theoretical knowledge within a field of knowledge.

Key Areas of Responsibility
Free text

Level 5 Core Competences / National Occupational Standards:

Underpinning Principle	Reference Function	
1. COMMUNICATION	1.2	Communicate effectively
2. PERSONAL & PEOPLE DEVELOPMENT	2.1.1	Develop your own practice

		2.1.2	Reflect on your own practice	
	2.2.1	The food after it is drained and ready for consumption if the food requires draining before consuming. Support the development of the knowledge and practice of individuals	SCDHSC0043-T- development of Click to view com	
3. HEALTH SAFETY & SECURITY		3.5.1	Ensure your own actions reduce risks to health and safety	
		3.5.2	Protect individuals from abuse	
4. SERVICE IMPROVEMENT		4.6	Promote service improvement	
5. QUALITY		5.1.1	Act within the limits of your competence and authority	
		5.1.2	Manage and organise your own time and activities	
6. EQUALITY & DIVERSITY		6.1	Ensure your own actions support equality of opportunity and diversity	

	6.2	Promote equality of opportunity and diversity	S C
B. HEALTH INTERVENTION	B2.1	Obtain information from individuals about their health status and needs	C H C
D. INFORMATION MANAGEMENT / INFORMATION AND COMMUNICATION TECHNOLOGY	D2.4	Maintain information / record systems	C C
H. MANAGEMENT & ADMINISTRATION	H1.3.1	Contribute to the effectiveness of teams	S C
	H1.3.2	Develop relationships with individuals	C e C
	H2.6	Receive and pass on messages and information	E C
Role Specific Competences / National Occupational Standards:			
Underpinning Principle	Reference Function		
1. COMMUNICATION	1.5	Provide information, advice and guidance	C C
			C C
			S f C
2. PERSONAL & PEOPLE DEVELOPMENT	2.1.1	Develop your own practice	C e C
	2.2.1	Support the development of the knowledge and practice of individuals	C p C

	2.2.2	Support the development of knowledge and practice of teams and agencies	Competence
			Standard
3. HEALTH SAFETY & SECURITY	3.5.2	Protect individuals from abuse	Standard
			Competence
			Competence
4. SERVICE IMPROVEMENT	4.2	Develop strategies for improving services	Competence
	4.3	Implement strategies for improving services	Competence
5. QUALITY	5.2.5	Evaluate the quality of healthcare services	Standard
	5.2.5	(Contd..) Evaluate the quality of healthcare services	Competence
A. ASSESSMENT	A2.1	Plan assessment of an individual's health status	Competence
	A2.3	Assess an individual with a suspected health condition	Competence
	A2.7	Undertake a risk assessment in relation to a defined health need	Competence

B. HEALTH INTERVENTION	B1.1	Obtain valid consent for interventions or investigations	€
	B3.1.2	Enable individuals to make health choices and decisions	€
	B3.4.2	Refer individuals to services for treatment and care	€
			€
	B4.2	Evaluate the delivery of care plans to meet the needs of individuals	€
	B4.3	Evaluate treatment plans with individuals and those involved in their care	€
	B16.3	Assist individuals in undertaking activities	€
	B16.4	Support individuals to retain, regain and develop the skills to manage their lives and environment	€
			€
			€
	B17	Work in collaboration with carers in the caring role	€
			€

G. HEALTH PROMOTION & PROTECTION	C2.4	Enable people to address issues relating to their health and wellbeing	S C
			S a C
	C2.4	(Contd..) Enable people to address issues relating to their health and wellbeing	C t C
			C C
H. MANAGEMENT & ADMINISTRATION	H1.1.5	Provide leadership	C C
	H1.3.1	Contribute to the effectiveness of teams	C C
			C C
			S h C
			C p C
			C C
	H1.3.2	Develop relationships with individuals	C e C
	H1.3.2	(Contd..) Develop relationships with individuals	C s C

	H1.3.3	Manage multi-agency collaborative working	C e C
			C e C
			S e C
			S e C
Facets of Role (National Occupational Standards):			
Underpinning Principle	Reference Function		
		None Assigned	
Locality Specific Competences / National Occupational Standards:			
Underpinning Principle	Reference Function		
		None Assigned	

Editorial note:

Clause 11A of Standard 1.2.8 provides additional nutrition information panel (NIP) requirements where a claim is based on food as prepared.

7 Claims not to be therapeutic in nature

A claim must not –

- (a) refer to the prevention, diagnosis, cure or alleviation of a disease, disorder or condition; or
- (b) compare a food with a good that is –
 - (i) represented in any way to be for therapeutic use; or
 - (ii) likely to be taken to be for therapeutic use, whether because of the way in which the good is presented or for any other reason.

8 Claims not to compare vitamin or mineral content

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A claim that directly or indirectly compares the vitamin or mineral content of a food with that of another food must not be made unless the claim is permitted by another Standard in this Code.

9 Standard does not prescribe words

(1) Nothing in this Standard is to be taken to prescribe the words that must be used when making a claim.

(2) Any statement or information required by this Standard may be modified if the modification does not alter or contradict the effect of the required statement or information.

Part 3 – Requirements for nutrition content claims
and health claims

Division 1 – Nutrition content claims

10 Presentation of nutrition content claims

A nutrition content claim must be stated together with a statement about the form of the food to which the claim relates, unless the form of the food to which the claim relates is the food as sold.

11 Nutrition content claims about properties of food in Schedule 1

(1) If a property of food is mentioned in Column 1 of Schedule 1 a nutrition content claim may only be made about that property of food in accordance with this clause.

(2) If a claim is made in relation to a food about a property of food mentioned in Column 1 of Schedule 1 the food must meet the corresponding general claim conditions, if any, in Column 2 of that Schedule.

(3) If a claim made in relation to a food about a property of food mentioned in Column 1 of Schedule 1 uses a descriptor mentioned in Column 3 of that Schedule or a synonym of that descriptor the food must meet –

- (a) the general claim conditions for the relevant property of food in Column 2 of that Schedule; and
- (b) the specific claim conditions in Column 4 of that Schedule for the relevant descriptor.

(4) If, in relation to a claim mentioned in subclause (3), there is an inconsistency between a general claim condition in Column 2 of Schedule 1 and a specific claim condition in Column 4 of that Schedule, the specific claim condition prevails.

(5) A descriptor must not be used in a nutrition content claim about lactose or trans fatty acids unless the descriptor –

- (a) is mentioned in Column 3 of Schedule 1 and corresponds with that property of food, or
- (b) is a synonym of the descriptor mentioned in paragraph (a).

(6) A descriptor must not be used in a nutrition content claim about glycaemic load unless that descriptor is expressed as a number or in numeric form.

(7) A nutrition content claim in relation to gluten may only –

- (a) use a descriptor that is mentioned in Column 3 of Schedule 1 in conjunction with gluten, or a synonym of such a descriptor; or
- (b) state that a food contains gluten or is high in gluten.

(8) Subject to this clause and clause 14 (*Nutrition content claims must not imply slimming effects*) any descriptor that is not mentioned in Column 3 of Schedule 1, including a descriptor expressed as a number or in numeric form, may be used in conjunction with a property of food that is mentioned in Column 1 of that Schedule.

12 Nutrition content claims about properties of food not in Schedule 1

(1) A nutrition content claim about a property of food that is not mentioned in Schedule 1 may only state –

- (a) that the food contains or does not contain the property of food, or
- (b) that the food contains a specified amount of the property of food in a specified amount of that food, or
- (c) a combination of (a) and (b).

(2) A statement made for the purposes of paragraph (1)(a) must not use a descriptor listed in Column 3 of Schedule 1 or any other descriptor except a descriptor that indicates that the food does not contain the property of food.

13 Nutrition content claims about choline, fluoride or folic acid

(1) A nutrition content claim about choline, fluoride or folic acid may only state –

- (a) that the food contains choline, fluoride or folic acid, or
- (b) that the food contains a specified amount of choline, fluoride or folic acid in a specified amount of that food, or
- (c) a combination of (a) and (b).

(2) A statement made for the purposes of paragraph (1)(a) must not use a descriptor listed in Column 3 of Schedule 1 or any other descriptor.

(3) A nutrition content claim about choline, fluoride or folic acid may be made only if a health claim about that substance is made in relation to the same food.

14 Nutrition content claims must not imply slimming effects

A nutrition content claim that meets the conditions to use the descriptor diet must not use another descriptor that directly or indirectly refers to slimming or a synonym for slimming.

15 Comparative claims

(1) In this clause, a *comparative claim* means a nutrition content claim that directly or indirectly compares the nutrition content of one food or brand of food with another, and includes claims using the following descriptors –

- (a) light or lite;
- (b) increased;
- (c) reduced;

or words of similar import.

(2) A nutrition content claim using the descriptor diet is a comparative claim if it meets the conditions for making that claim by having at least 40% less energy than the same quantity of reference food.

(3) A comparative claim about a food (the claimed food) must include together with the claim –

- (a) the identity of the reference food; and

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(b) the difference between the amount of the property of food in the claimed food and the reference food.

Division 2 – Health claims

16 Application or proposal to vary Schedule 3 taken to be a high level health claims variation

An application or a proposal to add a general level health claim to Schedule 3 is taken to be an application or proposal for a **high level health claims variation**.

Editorial Note:

High level health claims variation is defined in section 4 of the *Food Standards Australia New Zealand Act 1991* (FSANZ Act).

The effect of this provision is that an application or a proposal to add a general level health claim to Schedule 3 will be assessed under the provisions in Subdivision G of each of Divisions 1 and 2 of Part 3 of the FSANZ Act, as appropriate.

17 Conditions for making health claims

(1) A health claim must not be made unless it complies with subclause (2) and either subclause (3) or (4), whichever applies.

(2) The food to which the health claim relates meets the NPSC.

(3) If the health claim is a high level health claim –

- (a) the food or the property of food is mentioned in Column 1 of Schedule 2; and
- (b) the health effect claimed for that food or property of food is mentioned in the corresponding row in Column 2 of Schedule 2; and
- (c) the food complies with the relevant conditions in Column 5 of Schedule 2.

(4) If the health claim is a general level health claim, either –

each of the following –

- (i) the food or the property of food is mentioned in Column 1 of Schedule 3;
 - (ii) the health effect claimed for that food or property of food is mentioned in the corresponding row in Column 2 of Schedule 3; and
 - (iii) the food complies with the relevant conditions in Column 5 of Schedule 3;
- or
- (b) the person who is responsible for making the health claim has notified the Chief Executive Officer of the Authority of the details of a relationship between a food or property of food and a health effect that has been established by a process of systematic review that is described in Schedule 6.

(5) Despite subclause (2) a food that is standardised in Part 2.9 of this Code does not need to meet the NPSC.

18 Requirement when making a general level health claim under paragraph 17(4)(b)

(1) A person who gives the notice mentioned in paragraph 17(4)(b) is required to –

- (a) provide the name of the person that is giving the notice and the address in Australia or New Zealand of that person; and
- (b) consent to the publication by the Authority of the information given for the purposes of paragraph 17(4)(b) and subparagraph 18(1)(a); and
- (c) certify that the notified relationship between a food or property of food and a health

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effect has been established by a process of systematic review that is described in
Schedule 6; and

- (d) if requested by a relevant authority, provide records to the relevant authority that demonstrate that –
 - (i) the systematic review was conducted in accordance with the process of systematic review described in Schedule 6; and
 - (ii) the notified relationship is a reasonable conclusion of the systematic review.

(2) A certificate provided for a body corporate must be signed by a senior officer of the body corporate.

19 How health claims are to be made

(1) If a health claim is a high level health claim based on a relationship described in Schedule 2 or a general level health claim based on a relationship described in Schedule 3, the health claim must –

- (a) state –
 - (i) the food or the property of food mentioned in Column 1 of Schedule 2 or Column 1 of Schedule 3; and
 - (ii) the specific health effect mentioned in Column 2 of Schedule 2 or Column 2 of Schedule 3 that is claimed for the food or the property of food; and
- (b) if Column 3 of Schedule 2 or Column 3 of Schedule 3 refers to a relevant population group to which the specific health effect relates, include a statement of that population group in conjunction with the health claim.

(2) If a health claim is a general level health claim based on a relationship that has been notified under paragraph 17(4)(b), the health claim must –

- (a) state the food or the property of food and the specific health effect; and
- (b) include together with the health claim a statement about the relevant population group, if any, that is a reasonable conclusion of the systematic review mentioned in paragraph 17(4)(b).

(3) In addition to the requirements under subclause (1) or (2), whichever applies, the health claim must also include together with the health claim –

- (a) a dietary context statement according to the principles for a dietary context statement set out in subclause (4); and
- (b) a statement of the form of the food to which the health claim relates.

(4) A dietary context statement must –

- (a) state that the health effect must be considered in the context of a healthy diet involving the consumption of a variety of foods; and
- (b) be appropriate to the type of food or the property of food that is the subject of the claim and the health effect claimed; and
- (c) either –
 - (i) if the health claim is a high level health claim based on a relationship described in Schedule 2 or a general level health claim based on a relationship described in Schedule 3, include words to the effect of the relevant dietary context statement in the corresponding row of Column 4 of Schedule 2 or Column 4 of Schedule 3, if any; or

- (ii) if the health claim is a general level health claim based on a relationship that has been notified under paragraph 17(4)(b), include words to the effect of a relevant dietary context statement that is a reasonable conclusion of the systematic review.

(5) Despite paragraph (3)(a), a dietary context statement need not be included on a label on a food product that is contained in a small package.

(6) Despite paragraph (3)(b), if the form of the food to which the claim relates is the food as sold, the form of the food to which the claim relates need not be stated.

20 Split health claims

If the statements required by subclauses 19(1) and (3) or 19(2) and (3) appear on a label or in an advertisement, the matters referred to in paragraph 19(1)(a) or (2)(a), as appropriate, may also appear in another statement on the label or in the advertisement if that other statement indicates where on the label or advertisement the statements required by subclauses 19(1) and (3) or 19(2) and (3) are located.

21 Statements for claims about phytosterols, phytostanols and their esters

A dietary context statement for a claim about phytosterols, phytostanols and their esters need not include a statement required by paragraph 19(4)(a) if the claim appears together with the mandatory advisory statement required by clause 2 of Standard 1.2.3.

Division 3 – Endorsements

22 Endorsing bodies

(1) An endorsing body must –

- (a) not be related to; and
- (b) be independent of; and
- (c) be free from influence by;

the supplier of food in relation to which an endorsement is made.

(2) An endorsing body is related to a supplier if the supplier –

- (a) has a financial interest in the endorsing body; or
- (b) established, either by itself or with others, the endorsing body; or
- (c) exercises direct or indirect control over the endorsing body.

23 Criteria for endorsements

(1) A supplier of food may make or include an endorsement on a label or in an advertisement for the food, or otherwise use the endorsement, if:

- (a) the supplier keeps the required records for the information period; and
- (b) the supplier upon request by the relevant authority, makes the required records available for inspection within the time specified by the relevant authority; and
- (c) the endorsement complies with clause 7; and
- (d) the endorsing body complies with clause 22.

(2) If a label on, or an advertisement for, imported food makes or includes an endorsement, the importer of the food must –

- (a) keep the required records for the information period as if the importer of the food

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were the supplier of the food; and

(b) upon request by the relevant authority, make the required records available for inspection within the time specified by the relevant authority.

(3) An endorsement must not refer to a serious disease except in a reference to the endorsing body if the serious disease is part of the name of the endorsing body.

(4) Part 2 (other than clause 7) and Part 3 Divisions 1, 2 and 4 do not apply to an endorsement.

(5) In this clause –

information period, in relation to food, means the period –

(a) during which the food is available for sale or advertised for sale; and

(b) the period of 2 years after the food was last sold, or advertised or available for sale, whichever is the latest.

required records means a document or documents that demonstrate that –

(a) a supplier using an endorsement has obtained the permission of the endorsing body to use the endorsement; and

(b) the endorsing body has a nutrition- or health-related function or purpose; and

(c) the endorsing body is a not-for-profit entity; and

(d) the endorsing body is not related to the supplier using the endorsement.

Division 4 – Additional labelling of food required to meet the NPSC

24 Method for calculating a nutrient profiling score

The method for calculating a nutrient profiling score is described in Schedule 5.

25 Labelling of food required to meet the NPSC

(1) This clause applies if a food must meet the NPSC in order to make a claim.

(2) The particulars of a property of food must be declared in the nutrition information panel if –

(a) the property of food, other than fvnI, is relied on to meet the NPSC; and

(b) those particulars are not otherwise required to be included in the nutrition information panel.

(3) The calcium content of a food must be declared in the nutrition information panel if the food –

(a) is classified in Category 3 of Schedule 4 for the purposes of determining the food's nutrient profiling score; and

(b) is a cheese or processed cheese.

(4) If a food scores V points under item 4 of Schedule 5, the percentage of each element of fvnI that is relied on to meet the NPSC must be declared on the label, unless the claim is a health claim about fruits and vegetables.

(5) If food is not required to bear a label under subclause 2(1) of Standard 1.2.1, the information prescribed in subclause (2), (3) or (4) of this clause must be provided to the purchaser of the food on request by the purchaser or –

(a) in the case of information prescribed in subclause (2) or (3), declared in a nutrition information panel displayed on or in connection with the display of the food; or

(b) in the case of information prescribed in subclause (4), declared on a label

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displayed on or in connection with the display of the food.

26 Labelling exemptions for certain foods

The declaration required by subclauses 25(2), (3) or (4) is not required if food is in a small package.

SCHEDULE 1

Conditions for nutrition content claims

<u>Column 1</u> Personal Specification	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	
Criteria		Essential (pre-requisite for job)	Desirable	Evidence Application and/or Selection process A and/or S
Physical requirements				
Knowledge and skills required for post Education/ Qualification				
Experience, Previous experience relevant to the post:				
<u>Property of food</u> Skills in communication, mathematics and use of IT (Employability Skills Matrix, Skills for Health 2014)	<u>General claim conditions that must be met</u>	<u>Specific descriptor or</u>	<u>Conditions that must be met if using specific descriptor in column 3</u>	
<u>Carbohydrate</u> Communications and Customer Care • Communicate clearly, effectively and confidently with people in the workplace following detailed and/or multi-step instructions. Respond constructively to queries and complaints Take full part in formal and informal discussions, ensuring contributions meet the needs of the audience, ask questions to clarify understanding and persuading and influencing people in a way that builds team confidence Read and understand, writing effectively for a range of contexts and situations:			<u>Reduced or light/lite</u>	<u>The food contains at least 25% less carbohydrate than in the same quantity of reference food.</u>
Mathematics • Select, compare and discuss information from lists, tables, diagrams and charts and use appropriate mathematical method and tools to solve identified problems and assist with clinical trials, audits or research projects as required:				

<u>Column 1</u> Personal Specification		<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>
Use of IT Use IT to meet identified needs and plan and evaluate the work of the team effectively, maintaining confidentiality.				<u>Increase</u> <u>d</u> The food contains at least 25% more carbohydrate than in the same quantity of reference food.
<u>Cholesterol</u>	The food meets the conditions for a nutrition content claim about low saturated fatty acids.	<u>Low</u>	The food contains no more cholesterol than – (a) 10 mg per 100 mL for liquid food; or (b) 20 mg per 100 g for solid food. Team working skills and attributes (Employability Skills Matrix, Skills for Health 2014)	
Working with Others - Work with others towards achieving shared goals, learning from mistakes and being open to the opinion of others including service users - Receive and give constructive feedback.				<u>Reduce</u> <u>d or</u> <u>Light/Lite</u> The food contains at least 25% less cholesterol than in the same quantity of reference food.
<u>Dietary fibre</u> Solving Problems - Assess situations and identify the root cause of problems - Evaluate different points of view on the basis of facts. - Use theoretical and practical knowledge to solve problems and make decisions.			A serving of the food contains at least 2 g of dietary fibre unless the claim is about low or reduced dietary fibre.	<u>Good</u> <u>source</u> A serving of the food contains at least 4 g of dietary fibre.
Personal: personal skills, qualities, values and behaviours (Employability Skills Matrix, Skills for Health 2014)			<u>Excellent</u> <u>source</u>	A serving of the food contains at least 7 g of dietary fibre.

<u>Column 1</u> Personal Specification	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>
Demonstrate positive attitudes, values and behaviours • Demonstrate honesty, integrity care and compassion at all times, and maintain the dignity and confidentiality of the service user. Take care of your personal health, including hygiene and appearance. • Show interest in work and identify and suggest alternative ways of getting the job done. • Present a positive image, recognise and reflect on your own work and value other peoples.		<u>Increase</u> <u>d</u>	<u>(a) the</u> <u>referenc</u> <u>e food</u> <u>contains</u> <u>at least 2</u> <u>g of</u> <u>dietary</u> <u>fibre per</u> <u>serving;</u> <u>and</u> <u>(b) the food</u> <u>contains</u> <u>at least</u> <u>25%</u> <u>more</u> <u>dietary</u> <u>fibre than</u> <u>in the</u> <u>same</u> <u>quantity</u> <u>of</u> <u>referenc</u> <u>e food.</u>
<u>Energy</u>		<u>Low</u>	<u>The average energy content of the</u> <u>food is no more than –</u> <u>(a) 80 kJ per 100 mL for liquid</u> <u>food; or</u> <u>(b) 170 kJ per 100 g for solid food.</u>
		<u>Reduced or Light/Lite</u>	<u>The food contains at least 25%</u> <u>less energy than in the same</u> <u>quantity of reference food.</u>

Be responsible Be responsible and accountable for your own actions, including effective leadership. Manage your work/life balance, and attend work as required on time. Understand your rights and responsibilities at work, lead on health and safety policies, practices and procedures. Be able to implement best practice in terms of equality of opportunity and valuing diversity in the workplace. Understand your responsibility to identify and raise any issues relating to the service with more senior staff. Understand and respect confidentiality in relation to your work. Plan and manage time and resources to achieve personal and team goals. Assess, weigh and take steps to minimise and manage risk.		<u>Diet</u>	(a) the food meets the NPSC, unless the food is a food standardised by Part 2.9 of the Code; and (b) (i) the average energy content of the food is no more than 80 kJ per 100 mL for liquid food or 170 kJ per 100 g for solid food; or (ii) the food contains at least 40% less energy than in the same quantity of reference food.
Be adaptable Carry out multiple tasks or projects. Be open and respond			

constructively to change. Seek help when necessary.			
Learn continuously - Take responsibility for your own learning and be willing to continuously learn and grow, reflecting on own practice and encouraging others to reflect on their practice. - Assess personal strengths and areas for development, set own learning goals and work towards their achievement. - Identify, access and make use of appropriate learning sources and opportunities.			

SCHEDULE 1 (continued)

Conditions for nutrition content claims

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>
<u>Property of food</u>	<u>General claim conditions that must be met</u>	<u>Specific descriptor</u>	<u>Conditions that must be met if using specific descriptor in column 3</u>
<u>Fat</u>		<u>% Free</u>	<u>The food meets the conditions for a nutrition content claim about low fat.</u>
		<u>Low</u>	<u>The food contains no more fat than –</u> <u>(a) 1.5 g per 100 mL for liquid food; or</u> <u>(b) 3 g per 100 g for solid food.</u>
		<u>Reduced or Light/Lite</u>	<u>The food contains at least 25% less fat than in the same quantity of reference food.</u>
<u>Gluten</u>		<u>Free</u>	<u>The food must not contain –</u> <u>(a) detectable gluten; or</u> <u>(b) oats or their products; or</u> <u>(c) cereals containing gluten that have been malted, or their products.</u>
		<u>Low</u>	<u>The food contains no more than 20 mg gluten per 100 g of the food.</u>
<u>Glycaemic Index</u>	<u>(a) the food meets the NPSC, unless the food is a food standardised by Part 2.9 of the Code; and</u> <u>(b) the claim or the nutrition information panel under Standard 1.2.8 includes the numerical value of the glycaemic index of the food.</u>	<u>Low</u>	<u>The numerical value of the glycaemic index of the food is 55 or below.</u>
		<u>Medium</u>	<u>The numerical value of the glycaemic index of the food is at least 56 and not exceeding 69.</u>
		<u>High</u>	<u>The numerical value of the glycaemic index of the food is 70 or above.</u>
<u>Glycaemic load</u>	<u>The food meets the NPSC, unless the food is a food standardised under Part 2.9 of the Code.</u>		
<u>Lactose</u>	<u>The nutrition information panel indicates the lactose and galactose content.</u>	<u>Free</u>	<u>The food contains no detectable lactose.</u>
		<u>Low</u>	<u>The food contains no more than 2 g of lactose per 100 g of the food.</u>

<u>Monounsaturated fatty acids</u>	The food contains, as a proportion of the total fatty acid content – (a) no more than 28% <u>saturated fatty acids and trans fatty acids;</u> and (b) no less than 40% <u>monounsaturated fatty acids.</u>	<u>Increased</u>	(a) the food contains at least 25% <u>more monounsaturated fatty acids than in the same quantity of reference food; and</u> (b) the reference food meets the <u>general claim conditions for a nutrition content claim about monounsaturated fatty acids.</u>
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SCHEDULE 1 (continued)

Conditions for nutrition content claims

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>
<u>Property of food</u>	<u>General claim conditions that must be met</u>	<u>Specific descriptor</u>	<u>Conditions that must be met if using specific descriptor in column 3</u>
<u>Omega fatty acids (any)</u>	<u>The type of omega fatty acid is specified immediately after the word 'omega'.</u>		
<u>Omega-3 fatty acids</u>	<u>(a) the food meets the conditions for a nutrition content claim about omega fatty acids; and</u> <u>(b) the food contains no less than –</u> <u>(i) 200 mg alpha-linolenic acid per serving; or</u> <u>(ii) 30 mg total eicosapentaenoic acid and docosahexaenoic acid per serving; and</u> <u>(c) other than for fish or fish products with no added saturated fatty acids, the food contains –</u> <u>(i) as a proportion of the total fatty acid content, no more than 28% saturated fatty acids and trans fatty acids; or</u> <u>(ii) no more saturated fatty acids and trans fatty acids than 5 g per 100 g; and</u> <u>(d) the nutrition information panel indicates the type and amount of omega-3 fatty acids, that is, alpha-linolenic acid, docosahexaenoic acid or eicosapentaenoic acid, or a combination of the above.</u>	<u>Good Source</u>	<u>(a) the food contains no less than 60 mg total eicosapentaenoic acid and docosahexaenoic acid per serving; and</u> <u>(b) the food may contain less than 200 mg alpha-linolenic acid per serving.</u>
		<u>Increased</u>	<u>(a) the food contains at least 25% more omega-3 fatty acids than in the same quantity of reference food; and</u> <u>(b) the reference food meets the general claim conditions for a nutrition content claim about omega-3 fatty acids.</u>

SCHEDULE 1 (continued)

Conditions for nutrition content claims

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>
<u>Property of food</u>	<u>General claim conditions that must be met</u>	<u>Specific descriptor</u>	<u>Conditions that must be met if using specific descriptor in column 3</u>
<u>Omega-6 fatty acids</u>	(a) the food meets the conditions for a nutrition content claim about omega fatty acids; and (b) the food contains, as a proportion of the total fatty acid content – (i) no more than 28% saturated fatty acids and trans fatty acids; and (ii) no less than 40% omega-6 fatty acids.	<u>Increased</u>	(a) the food contains at least 25% more omega-6 fatty acids than in the same quantity of reference food; and (b) the reference food meets the general claim conditions for a nutrition content claim about omega-6 fatty acids.
<u>Omega-9 fatty acids</u>	(a) the food meets the conditions for a nutrition content claim about omega fatty acids; and (b) the food contains, as a proportion of the total fatty acid content – (i) no more than 28% saturated fatty acids and trans fatty acids; and (ii) no less than 40% omega-9 fatty acids.	<u>Increased</u>	(a) the food contains at least 25% more omega-9 fatty acids than in the same quantity of reference food; and (b) the reference food meets the general claim conditions for a nutrition content claim about omega-9 fatty acids.
<u>Polyunsaturated fatty acids</u>	The food contains, as a proportion of the total fatty acid content – (a) no more than 28% saturated fatty acids and trans fatty acids; and (b) no less than 40% polyunsaturated fatty acids.	<u>Increased</u>	(a) the food contains at least 25% more polyunsaturated fatty acids than in the same quantity of reference food; and (b) the reference food meets the general claim conditions for a nutrition content claim about polyunsaturated fatty acids.
<u>Potassium</u>	The nutrition information panel indicates the sodium and potassium content.		

SCHEDULE 1 (continued)

Conditions for nutrition content claims

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>
<u>Property of food</u>	<u>General claim conditions that must be met</u>	<u>Specific descriptor</u>	<u>Conditions that must be met if using specific descriptor in column 3</u>
<u>Protein</u>	<u>The food contains at least 5 g of protein per serving unless the claim is about low or reduced protein.</u>	<u>Good Source</u>	<u>The food contains at least 10 g of protein per serving.</u>
		<u>Increased</u>	<u>(a) the food contains at least 25% more protein than in the same quantity of reference food; and</u> <u>(b) the reference food meets the general claim conditions for a nutrition content claim about protein.</u>
<u>Salt or sodium</u>	<u>The nutrition information panel indicates the potassium content.</u>	<u>Low</u>	<u>The food contains no more sodium than –</u> <u>(a) 120 mg per 100 mL for liquid food; or</u> <u>(b) 120 mg per 100 g for solid food.</u>
		<u>Reduced or Light/Lite</u>	<u>The food contains at least 25% less sodium than in the same quantity of reference food.</u>
		<u>No added</u>	<u>(a) the food contains no added sodium compound including no added salt; and</u> <u>(b) the ingredients of the food contain no added sodium compound including no added salt.</u>
		<u>Unsalted</u>	<u>The food meets the conditions for a nutrition content claim about no added salt or sodium.</u>
<u>Saturated and trans fatty acids</u>		<u>Low</u>	<u>The food contains no more saturated and trans fatty acids than –</u> <u>(a) 0.75 g per 100 mL for liquid food; or</u> <u>(b) 1.5 g per 100 g for solid food.</u>
		<u>Reduced or Light/Lite</u>	<u>The food contains –</u> <u>(a) at least 25% less saturated and trans fatty acids than in the same quantity of reference food; and</u> <u>(b) both saturated and trans fatty acids are reduced relative to the same quantity of reference food.</u>
		<u>Low proportion</u>	<u>(a) the food contains as a proportion of the total fatty acid content, no more than 28% saturated fatty acids and trans fatty acids; and</u> <u>(b) the claim expressly states in words to the effect of 'low proportion of saturated and</u>

			<u>trans fatty acids of total fatty acid content'.</u>
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SCHEDULE 1 (continued)

Conditions for nutrition content claims

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>
<u>Property of food</u>	<u>General claim conditions that must be met</u>	<u>Specific descriptor</u>	<u>Conditions that must be met if using specific descriptor in column 3</u>
<u>Saturated fatty acids</u>		<u>Free</u>	(a) the food contains no detectable saturated fatty acids; and (b) the food contains no detectable trans fatty acids.
		<u>Low</u>	The food contains no more saturated and trans fatty acids than – (a) 0.75 g per 100 mL for liquid food; or (b) 1.5 g per 100 g for solid food.
		<u>Reduced or Light/Lite</u>	The food contains – (a) at least 25% less saturated fatty acids than in the same quantity of reference food, and (b) no more trans fatty acids than in the same quantity of reference food.
		<u>Low proportion</u>	(a) the food contains as a proportion of the total fatty acid content, no more than 28% saturated fatty acids and trans fatty acids; and (b) the claim expressly states in words to the effect of 'low proportion of saturated fatty acids of the total fatty acid content'.
<u>Sugar or Sugars</u>		<u>% Free</u>	The food meets the conditions for a nutrition content claim about low sugar.
		<u>Low</u>	The food contains no more sugars than – (a) 2.5 g per 100 mL for liquid food; or (b) 5 g per 100 g for solid food.
		<u>Reduced or Light/Lite</u>	The food contains at least 25% less sugars than in the same quantity of reference food.
		<u>No added</u>	(a) the food contains no added sugars as standardised in clause 1 of Standard 2.8.1, honey, malt, or malt extracts; and (b) the food contains no added concentrated fruit juice or deionised fruit juice, unless the food is standardised in Standards 2.6.1 or 2.6.2.

SCHEDULE 1 (continued)

Conditions for nutrition content claims

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>
<u>Property of food</u>	<u>General claim conditions that must be met</u>	<u>Specific descriptor</u>	<u>Conditions that must be met if using specific descriptor in column 3</u>
<u>Sugar or Sugars (continued)</u>		<u>Unsweetened</u>	(a) the food meets the conditions for a nutrition content claim about no added sugar; and (b) the food contains no intense sweeteners, sorbitol, mannitol, glycerol, xylitol, isomalt, maltitol syrup or lactitol.
<u>Trans fatty acids</u>		<u>Free</u>	The food contains no detectable trans fatty acids, and contains – (a) no more than 0.75 g saturated fatty acids per 100 mL of liquid food or 1.5 g saturated fatty acids per 100 g of solid food; or (b) no more than 28% saturated fatty acids as a proportion of the total fatty acid content.
		<u>Reduced or Light/Lite</u>	The food contains – (a) at least 25% less trans fatty acids than in the same quantity of reference food, and (b) no more saturated fatty acids than in the same quantity of reference food.
<u>Vitamin or mineral (not including potassium or sodium)</u>	(a) the vitamin or mineral is mentioned in column 1 of the Schedule to Standard 1.1.1; and (b) a serving of the food contains at least 10% of the RDI or ESADDI for that vitamin or mineral; and (c) a claim is not for more of the particular vitamin or mineral than the maximum claimable amount as prescribed by clause 4 or clause 5 of Standard 1.3.2; and (d) the food is not a food standardised by Standard 2.6.4, Standard 2.9.2, Standard 2.9.3 or Standard 2.9.4.	<u>Good source</u>	A serving of the food contains no less than 25% of the RDI or ESADDI for that vitamin or mineral.

SCHEDULE 1 (continued)

Conditions for nutrition content claims

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>
<u>Property of food</u>	<u>General claim conditions that must be met</u>	<u>Specific descriptor</u>	<u>Conditions that must be met if using specific descriptor in column 3</u>
<u>Vitamin or mineral (not including potassium or sodium)</u> <u>(continued)</u>	<u>If the food is a food standardised under Standard 2.9.2, the food meets the conditions for making a claim about vitamins and minerals in subclause 8(2) of Standard 2.9.2.</u>		
	<u>If the food is a formulated meal replacement standardised under Standard 2.9.3, the food meets the conditions for making a claim about vitamins and minerals in subclause 3(2) of Standard 2.9.3.</u>		
	<u>If the food is a formulated supplementary food standardised under Standard 2.9.3, the food meets the conditions for making a claim about vitamins and minerals in subclause 5(2) of Standard 2.9.3.</u>		
	<u>If the food is a formulated supplementary food for young children standardised under Standard 2.9.3, the food meets the conditions for making a claim about vitamins and minerals in subclause 7(2) of Standard 2.9.3.</u>		

SCHEDULE 2

Conditions for permitted high level health claims

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Context claim statements</u>	<u>Conditions</u>
<u>A high intake of fruit and vegetables</u>	<u>Reduces risk of coronary heart disease</u>		<u>Diet containing a high amount of both fruit and vegetables</u>	(a) claims are not permitted on – (i) <u>fruit juice or vegetable juice as standardised in Standard 2.6.1; or</u> (ii) <u>a food standardised in Standard 2.6.2; and</u> (b) <u>the food must contain no less than 90% fruit or vegetable by weight.</u>
<u>Beta-glucan</u>	<u>Reduces blood cholesterol</u>		<u>Diet low in saturated fatty acids</u> <u>Diet containing 3 g of beta-glucan per day</u>	<u>The food must contain –</u> (a) <u>one or more of the following oat or barley foods –</u> (i) <u>oat bran;</u> (ii) <u>Wholegrain oats; or</u> (iii) <u>wholegrain barley; and</u> (b) <u>at least 1 g per serving of beta-glucan from the foods listed in (a).</u>
<u>Calcium</u>	<u>Enhances bone mineral density</u>		<u>Diet high in calcium</u>	<u>The food must contain no less than 200 mg of calcium per serving.</u>
	<u>Reduces risk of osteoporosis</u> <u>Reduces risk of osteoporotic fracture</u>	<u>Persons 65 years and over</u>	<u>Diet high in calcium, and adequate vitamin D status</u>	<u>The food must contain no less than 290 mg of calcium per serving</u>

SCHEDULE 2 (continued)

Conditions for permitted high level health claims

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Context claim statements</u>	<u>Conditions</u>
<u>Calcium and Vitamin D</u>	<u>Reduces risk of osteoporosis</u>	<u>Persons 65 years and over</u>	<u>Diet high in calcium, and adequate vitamin D status</u>	<u>The food must –</u> <u>(a) contain no less than 290 mg of calcium per serving; and</u> <u>(b) meet the general claim conditions for making a nutrition content claim about vitamin D</u>
	<u>Reduces risk of osteoporotic fracture</u>			
<u>Folic acid (but not folate)</u>	<u>Reduces risk of foetal neural tube defects</u>	<u>Women of child bearing age</u>	<u>Consume at least 400 µg of folic acid per day, at least the month before and three months after conception</u>	<u>The food must –</u> <u>(a) contain no less than 40 µg folic acid per serving; and</u> <u>(b) the food is not –</u> <u>(i) soft cheese; or</u> <u>(ii) pâté; or</u> <u>(iii) liver or liver product; or</u> <u>(iv) food containing added phytosterols, phytostanols and their esters; or</u> <u>(v) food standardised in Standards 2.6.4 and 2.9.4; or</u> <u>(vi) a formulated meal replacement standardised in Division 2 of Standard 2.9.3</u>

SCHEDULE 2 (continued)

Conditions for permitted high level health claims

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Context claim statements</u>	<u>Conditions</u>
<u>Increased intake of fruit and vegetables</u>	<u>Reduces risk of coronary heart disease</u>		<u>Diet containing an increased amount of both fruit and vegetables</u>	(a) claims are not permitted on – (i) <u>fruit juice or vegetable juice as standardised in Standard 2.6.1; or</u> (ii) <u>a food standardised in Standard 2.6.2; and</u> (b) <u>the food must contain no less than 90% fruit or vegetable by weight</u>
<u>Phytosterols, phytosterols and their esters</u>	<u>Reduces blood cholesterol</u>		<u>Diet low in saturated fatty acids</u> <u>Diet containing 2 g of phytosterols, phytosterols and their esters per day</u>	<u>The food must –</u> (a) <u>meet the relevant conditions specified in Columns 1 and 2 of the Table to clause 2 in Standard 1.5.1; and</u> (b) <u>contain a minimum of 0.8 g total plant sterol equivalents content per serving</u>
<u>Saturated fatty acids</u>	<u>Reduces total blood cholesterol or blood LDL cholesterol</u>		<u>Diet low in saturated fatty acids</u>	<u>The food must meet the conditions for making a nutrition content claim about low saturated fatty acids</u>
<u>Saturated and trans fatty acids</u>	<u>Reduces total blood cholesterol or blood LDL cholesterol</u>		<u>Diet low in saturated and trans fatty acids</u>	<u>The food must meet the conditions for making a nutrition content claim about low saturated and trans fatty acids</u>
<u>Sodium or salt</u>	<u>Reduces blood pressure</u>		<u>Diet low in salt or sodium</u>	<u>The food must meet the conditions for making a nutrition content claim about low sodium or salt</u>

SCHEDULE 3

Conditions for permitted general level health claims

Part 1 – Minerals

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Dietary context</u>	<u>Conditions</u>
<u>Calcium</u>	<u>Necessary for normal teeth and bone structure</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about calcium</u>
	<u>Necessary for normal nerve and muscle function</u>			
	<u>Necessary for normal blood coagulation</u>			
	<u>Contributes to normal energy metabolism</u>			
	<u>Contributes to the normal function of digestive enzymes</u>			
	<u>Contributes to normal cell division</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
<u>Chromium</u>	<u>Contributes to normal macronutrient metabolism</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about chromium</u>
<u>Copper</u>	<u>Contributes to normal connective tissue structure</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about copper</u>
	<u>Contributes to normal iron transport and metabolism</u>			
	<u>Contributes to cell protection from free radical damage</u>			
	<u>Necessary for normal energy production</u>			
	<u>Necessary for normal neurological function</u>			
	<u>Necessary for normal immune system function</u>			
	<u>Necessary for normal skin and hair colouration</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
<u>Fluoride</u>	<u>Contributes to the maintenance of tooth mineralisation</u>			<u>The food must contain no less than 0.6 mg fluoride per L</u>

SCHEDULE 3 (continued)

Conditions for permitted general level health claims
Part 1 – Minerals (continued)

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Dietary context</u>	<u>Conditions</u>
<u>Iodine</u>	<u>Necessary for normal production of thyroid hormones</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about iodine</u>
	<u>Necessary for normal neurological function</u>			
	<u>Necessary for normal energy metabolism</u>			
	<u>Contributes to normal cognitive function</u>			
	<u>Contributes to the maintenance of normal skin</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
<u>Iron</u>	<u>Necessary for normal oxygen transport</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about iron</u>
	<u>Contributes to normal energy production</u>			
	<u>Necessary for normal immune system function</u>			
	<u>Contributes to normal blood formation</u>			
	<u>Necessary for normal neurological development in the foetus</u>			
	<u>Contributes to normal cognitive function</u>			
	<u>Contributes to the reduction of tiredness and fatigue</u>			
	<u>Necessary for normal cell division</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
	<u>Contributes to normal cognitive development</u>	<u>Children</u>		
<u>Manganese</u>	<u>Contributes to normal bone formation</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about manganese</u>
	<u>Contributes to normal energy metabolism</u>			
	<u>Contributes to cell protection from free radical damage</u>			
	<u>Contributes to normal connective tissue structure</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		

SCHEDULE 3 (continued)

Conditions for permitted general level health claims
Part 1 – Minerals (continued)

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Dietary context</u>	<u>Conditions</u>
<u>Magnesium</u>	<u>Contributes to normal energy metabolism</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about magnesium</u>
	<u>Necessary for normal electrolyte balance</u>			
	<u>Necessary for normal nerve and muscle function</u>			
	<u>Necessary for teeth and bone structure</u>			
	<u>Contributes to a reduction of tiredness and fatigue</u>			
	<u>Necessary for normal protein synthesis</u>			
	<u>Contributes to normal psychological function</u>			
	<u>Necessary for normal cell division</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
<u>Molybdenum</u>	<u>Contributes to normal sulphur amino acid metabolism</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about molybdenum</u>
<u>Phosphorus</u>	<u>Necessary for normal teeth and bone structure</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about phosphorus</u>
	<u>Necessary for the normal cell membrane structure</u>			
	<u>Necessary for normal energy metabolism</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
<u>Selenium</u>	<u>Necessary for normal immune system function</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about selenium</u>
	<u>Necessary for the normal utilisation of iodine in the production of thyroid hormones</u>			
	<u>Necessary for cell protection from some types of free radical damage</u>			
	<u>Contributes to normal sperm production</u>			
	<u>Contributes to the maintenance of normal hair and nails</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		

SCHEDULE 3 (continued)

Conditions for permitted general level health claims
Part 1 – Minerals (continued)

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Dietary context</u>	<u>Conditions</u>
<u>Zinc</u>	<u>Necessary for normal immune system function</u>			<u>The food must meet the general conditions for making a nutrition content claim about zinc</u>
	<u>Necessary for normal cell division</u>			
	<u>Contributes to normal skin structure and wound healing</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
	<u>Contributes to normal acid-base metabolism</u>			
	<u>Contributes to normal carbohydrate metabolism</u>			
	<u>Contributes to normal cognitive function</u>			
	<u>Contributes to normal fertility and reproduction</u>			
	<u>Contributes to normal macronutrient metabolism</u>			
	<u>Contributes to normal metabolism of fatty acids</u>			
	<u>Contributes to normal metabolism of vitamin A</u>			
	<u>Contributes to normal protein synthesis</u>			
	<u>Contributes to the maintenance of normal bones</u>			
	<u>Contributes to the maintenance of normal hair and nails</u>			
	<u>Contributes to the maintenance of normal testosterone levels in the blood</u>			
	<u>Contributes to cell protection from free radicals</u>			
	<u>Contributes to the maintenance of normal vision</u>			

SCHEDULE 3 (continued)

Conditions for permitted general level health claims
Part 2 – Vitamins

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Dietary context</u>	<u>Conditions</u>
<u>Biotin</u>	<u>Contributes to normal fat metabolism and energy production</u>			<u>The food must meet the general conditions for making a nutrition content claim about biotin</u>
	<u>Contributes to normal functioning of the nervous system</u>			
	<u>Contributes to normal macronutrient metabolism</u>			
	<u>Contributes to normal psychological function</u>			
	<u>Contributes to maintenance of normal hair</u>			
	<u>Contributes to maintenance of normal skin and mucous membranes</u>			
<u>Choline</u>	<u>Contributes to normal homocysteine metabolism</u>			<u>The food must contain no less than 50 mg choline per serve</u>
	<u>Contributes to normal fat metabolism</u>			
	<u>Contributes to the maintenance of normal liver function</u>			
<u>Folate</u>	<u>Necessary for normal blood formation</u>			<u>The food must meet the general conditions for making a nutrition content claim about folate</u>
	<u>Necessary for normal cell division</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
	<u>Contributes to maternal tissue growth during pregnancy</u>			
	<u>Contributes to normal amino acid synthesis</u>			
	<u>Contributes to normal homocysteine metabolism</u>			
	<u>Contributes to normal psychological function</u>			
	<u>Contributes to normal immune system function</u>			
	<u>Contributes to the reduction of tiredness and fatigue</u>			

SCHEDULE 3 (continued)

Conditions for permitted general level health claims
Part 2 – Vitamins (continued)

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Dietary context</u>	<u>Conditions</u>
<u>Folic acid (but not folate)</u>	<u>Contributes to normal neural tube structure in the developing foetus</u>	<u>Women of child bearing age</u>	<u>Consume at least 400 µg of folic acid per day, at least the month before and three months after conception</u>	(a) the food must contain no less than 40 µg folic acid per serving; and (b) the food is not – (i) soft cheese; or (ii) pâté; or (iii) liver or liver product; or (iv) food containing added phytosterols, phytostanols and their esters; or (v) a food standardised in Standards 2.6.4 and 2.9.4; or (vi) a formulated meal replacement standardised in Division 2 of Standard 2.9.3
<u>Niacin</u>	<u>Necessary for normal neurological function</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about niacin</u>
	<u>Necessary for normal energy release from food</u>			
	<u>Necessary for normal structure and function of skin and mucous membranes</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
	<u>Contributes to normal psychological function</u>			
	<u>Contributes to the reduction of tiredness and fatigue</u>			

SCHEDULE 3 (continued)

Conditions for permitted general level health claims
Part 2 – Vitamins (continued)

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Dietary context</u>	<u>Conditions</u>
<u>Pantothenic acid</u>	<u>Necessary for normal fat metabolism</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about pantothenic acid</u>
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
	<u>Contributes to normal energy production</u>			
	<u>Contributes to normal mental performance</u>			
	<u>Contributes to normal synthesis and metabolism of steroid hormones, vitamin D and some neurotransmitters</u>			
	<u>Contributes to the reduction of tiredness and fatigue</u>			
<u>Riboflavin</u>	<u>Contributes to normal iron transport and metabolism</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about riboflavin</u>
	<u>Contributes to normal energy release from food</u>			
	<u>Contributes to normal skin and mucous membrane structure and function</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
	<u>Contributes to normal functioning of the nervous system</u>			
	<u>Contributes to the maintenance of normal red blood cells</u>			
	<u>Contributes to the maintenance of normal vision</u>			
	<u>Contributes to the protection of cells from oxidative stress</u>			
	<u>Contributes to the reduction of tiredness and fatigue</u>			

SCHEDULE 3 (continued)

Conditions for permitted general level health claims
Part 2 – Vitamins (continued)

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Dietary context</u>	<u>Conditions</u>
<u>Thiamin</u>	<u>Necessary for normal carbohydrate metabolism</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about thiamin</u>
	<u>Necessary for normal neurological and cardiac function</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
	<u>Contributes to normal energy production</u>			
	<u>Contributes to normal psychological function</u>			
<u>Vitamin A</u>	<u>Necessary for normal vision</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about vitamin A</u>
	<u>Necessary for normal skin and mucous membrane structure and function</u>			
	<u>Necessary for normal cell differentiation</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
	<u>Contributes to normal iron metabolism</u>			
	<u>Contributes to normal immune system function</u>			
<u>Vitamin B₆</u>	<u>Necessary for normal protein metabolism</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about vitamin B₆</u>
	<u>Necessary for normal iron transport and metabolism</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
	<u>Contributes to normal cysteine synthesis</u>			
	<u>Contributes to normal energy metabolism</u>			
	<u>Contributes to normal functioning of the nervous system</u>			
	<u>Contributes to normal homocysteine metabolism</u>			
	<u>Contributes to normal glycogen metabolism</u>			
	<u>Contributes to normal psychological function</u>			
	<u>Contributes to normal red blood cell formation</u>			

SCHEDULE 3 (continued)

Conditions for permitted general level health claims
Part 2 – Vitamins (continued)

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Dietary context</u>	<u>Conditions</u>
<u>Vitamin B₆</u> (continued)	<u>Contributes to normal immune system function</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about vitamin B₆</u>
	<u>Contributes to the reduction of tiredness and fatigue</u>			
	<u>Contributes to the regulation of hormonal activity</u>			
<u>Vitamin B₁₂</u>	<u>Necessary for normal cell division</u>			<u>The food must meet the general conditions for making a nutrition content claim about vitamin B₁₂</u>
	<u>Contributes to normal blood formation</u>			
	<u>Necessary for normal neurological structure and function</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
	<u>Contributes to normal energy metabolism</u>			
	<u>Contributes to normal homocysteine metabolism</u>			
	<u>Contributes to normal psychological function</u>			
	<u>Contributes to normal immune system function</u>			
	<u>Contributes to the reduction of tiredness and fatigue</u>			
<u>Vitamin C</u>	<u>Contributes to iron absorption from food</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about vitamin C</u>
	<u>Necessary for normal connective tissue structure and function</u>			
	<u>Necessary for normal blood vessel structure and function</u>			
	<u>Contributes to cell protection from free radical damage</u>			
	<u>Necessary for normal neurological function</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
	<u>Contributes to normal collagen formation for the normal structure of cartilage and bones</u>			

SCHEDULE 3 (continued)

Conditions for permitted general level health claims
Part 2 – Vitamins (continued)

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Dietary context</u>	<u>Conditions</u>
<u>Vitamin C (continued)</u>	<u>Contributes to normal collagen formation for the normal function of teeth and gums</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about vitamin C</u>
	<u>Contributes to normal collagen formation for the normal function of skin</u>			
	<u>Contributes to normal energy metabolism</u>			
	<u>Contributes to normal psychological function</u>			
	<u>Contributes to the normal immune system function</u>			
	<u>Contributes to the reduction of tiredness and fatigue</u>			
<u>Vitamin D</u>	<u>Necessary for normal absorption and utilisation of calcium and phosphorus</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about vitamin D</u>
	<u>Contributes to normal cell division</u>			
	<u>Necessary for normal bone structure</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
	<u>Contributes to normal blood calcium levels</u>			
	<u>Contributes to the maintenance of normal muscle function</u>			
	<u>Contributes to the maintenance of normal teeth</u>			
	<u>Contributes to the normal function of the immune system</u>			
<u>Vitamin E</u>	<u>Contributes to cell protection from free radical damage</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about vitamin E</u>
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
<u>Vitamin K</u>	<u>Necessary for normal blood coagulation</u>			<u>The food must meet the general claim conditions for making a nutrition content claim about vitamin K</u>
	<u>Contributes to normal bone structure</u>			
	<u>Contributes to normal growth and development</u>	<u>Children</u>		

SCHEDULE 3 (continued)

Conditions for permitted general level health claims
Part 3 – Other

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Dietary Context</u>	<u>Conditions</u>
Beta-glucan	Reduces dietary and biliary cholesterol absorption		Diet low in saturated fatty acids Diet containing 3 g of beta-glucan per day	The food must contain = (a) one or more of the following oat or barley foods – (i) oat bran; (ii) wholegrain oats; or (iii) wholegrain barley; and (b) at least 1 g per serving of beta-glucan from the foods listed in (a)
Carbohydrate	Contributes energy for normal metabolism			(a) carbohydrate must contribute at least 55% of the energy content of the food; or (b) the food must – (i) be a formulated meal replacement or a formulated supplementary food; and (ii) have a maximum 10% of carbohydrate content from sugars
	Contributes energy for normal metabolism	Young children aged 1-3 years		The food must – (a) be a formulated supplementary food for young children (as standardised in Standard 2.9.3 Division 4); and (b) have a maximum 10% of carbohydrate content from sugars

SCHEDULE 3 (continued)

Conditions for permitted general level health claims
Part 3 – Other (continued)

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Dietary Context</u>	<u>Conditions</u>
<u>Dietary fibre</u>	<u>Contributes to regular laxation</u>			<u>The food must meet the general conditions for making a nutrition content claim about dietary fibre</u>
<u>Eicosapentaenoic acid (EPA) and Docosahexaenoic acid (DHA) (but not Omega-3)</u>	<u>Contributes to heart health</u>		<u>Diet containing 500 mg of EPA and DHA per day</u>	<u>(a) the food must contain a minimum of 50 mg EPA and DHA combined in a serving of food;</u> <u>b) other than for fish or fish products with no added saturated fatty acids, the food contains –</u> <u>(i) as a proportion of the total fatty acid content, no more than 28% saturated fatty acids and trans fatty acids; or</u> <u>(ii) no more than 5 g per 100 g saturated fatty acids and trans fatty acids.</u>
<u>Energy</u>	<u>Contributes energy for normal metabolism</u>			<u>The food must contain a minimum of 420 kJ of energy per serving</u>
	<u>Contributes energy for normal metabolism</u>	<u>Young children aged 1-3 years</u>		<u>The food must be a formulated supplementary food for young children (as standardised in Standard 2.9.3 Division 4)</u>

SCHEDULE 3 (continued)

Conditions for permitted general level health claims
Part 3 – Other (continued)

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Dietary Context</u>	<u>Conditions</u>
<u>Energy (continued)</u>	<u>Contributes to weight loss or weight maintenance</u>		<u>Diet reduced in energy and including regular exercise</u>	<u>The food –</u> (a) <u>meets the conditions for making a 'diet' nutrition content claim; or</u> (b) <u>is a formulated meal replacement as standardised by Division 2 of Standard 2.9.3 and contains no more than 1200 kJ per serving</u>
<u>Live yoghurt cultures</u>	<u>Improves lactose digestion</u>	<u>Individuals who have difficulty digesting lactose</u>		<u>The food must –</u> (a) <u>be yoghurt or fermented milk and</u> (b) <u>contain at least 10⁸ cfu/g (<i>Lactobacillus delbrueckii</i> subsp. <i>bulgaricus</i> and <i>Streptococcus thermophilus</i>)</u>
<u>Phytosterols, phytosteranols and their esters</u>	<u>Reduces dietary and biliary cholesterol absorption</u>		<u>Diet low in saturated fatty acids</u> <u>Diet containing 2 g of phytosterols, phytosteranols and their esters per day</u>	<u>The food must –</u> (a) <u>meet the relevant conditions specified in Columns 1 and 2 of the Table to clause 2 in Standard 1.5.1; and</u> (b) <u>contain a minimum of 0.8 g total plant sterol equivalents content per serving</u>

SCHEDULE 3 (continued)

Conditions for permitted general level health claims
Part 3 – Other (continued)

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Dietary Context</u>	<u>Conditions</u>
<u>Potassium</u>	<u>Necessary for normal water and electrolyte balance</u>			<u>The food contains no less than 200 mg of potassium per serving</u>
	<u>Contributes to normal growth and development</u>	<u>Children</u>		
	<u>Contributes to normal functioning of the nervous system</u>			
	<u>Contributes to normal muscle function</u>			
<u>Protein</u>	<u>Necessary for tissue building and repair</u>			<u>The food must meet the general conditions for making a nutrition content claim about protein</u>
	<u>Necessary for normal growth and development of bone</u>	<u>Children and adolescents aged 4 years and over</u>		
	<u>Contributes to the growth of muscle mass</u>			
	<u>Contributes to the maintenance of muscle mass</u>			
	<u>Contributes to the maintenance of normal bones</u>			
	<u>Necessary for normal growth and development</u>	<u>Children aged 4 years and over</u>		<u>The food must meet the general conditions for making a nutrition content claim about protein.</u>
	<u>Necessary for normal growth and development</u>	<u>Infants aged 6 months to 12 months</u>		<u>The food must be a food for infants and meet the conditions in subclause 6(3) of Standard 2.9.2</u>

SCHEDULE 3 (continued)

Conditions for permitted general level health claims
Part 4 – Foods

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Context claim statements</u>	<u>Conditions</u>
<u>Fruits and vegetables</u>	<u>Contributes to heart health</u>		<u>Diet containing an increased amount of fruit and vegetables;</u> <u>or</u> <u>Diet containing a high amount of fruit and vegetables</u>	(a) the food is not – (i) <u>fruit juice or vegetable juice as standardised in Standard 2.6.1;</u> <u>or</u> (ii) <u>a food standardised in Standard 2.6.2;</u> <u>and</u> (b) the food contains <u>no less than 90% fruit or vegetable by weight</u>
<u>Sugar or sugars</u>	<u>Contributes to dental health</u>		<u>Good oral hygiene</u>	The food – (a) <u>is confectionery or chewing gum; and</u> (b) <u>either –</u> (i) <u>contains 0.2% or less starch, dextrins, mono-, di- and oligo-saccharides, or other fermentable carbohydrates combined; or</u> (ii) <u>if the food contains more than 0.2% fermentable carbohydrates, it must not lower plaque pH below 5.7 by bacterial fermentation during 30 minutes after consumption as measured by the indwelling plaque pH test, referred to in 'Identification of Low Caries Risk Dietary Components' by T.N. Imfeld, Volume 11, Monographs in Oral Science, 1983</u>

SCHEDULE 3 (continued)

Conditions for permitted general level health claims
Part 4 – Foods (continued)

<u>Column 1</u>	<u>Column 2</u>	<u>Column 3</u>	<u>Column 4</u>	<u>Column 5</u>
<u>Food or property of food</u>	<u>Specific health effect</u>	<u>Relevant population</u>	<u>Context claim statements</u>	<u>Conditions</u>
Chewing gum	Contributes to the maintenance of tooth mineralisation		Chew the gum for at least 20 minutes after eating or drinking	The food is chewing gum and either – (a) contains 0.2% or less starch, dextrins, mono-, di- and oligosaccharides, or other fermentable carbohydrates combined; or (b) if the food contains more than 0.2% fermentable carbohydrates, it must not lower plaque pH below 5.7 by bacterial fermentation during 30 minutes after consumption as measured by the indwelling plaque pH test, referred to in 'Identification of Low Caries Risk Dietary Components' by T.N. Imfeld, Volume 11, Monographs in Oral Science, 1983
	Contributes to the neutralisation of plaque acids			
	Contributes to the reduction of oral dryness		Chew the gum when the mouth feels dry	

SCHEDULE 4

Nutrient profiling scoring criterion

	<u>Column 1</u>	<u>Column 2</u>
<u>Category</u>	<u>NPSC category</u>	<u>The nutrient profiling score must be less than</u>
<u>1</u>	Beverages	<u>1</u>
<u>2</u>	Any food other than those included in Category 1 or 3.	<u>4</u>
<u>3</u>	(a) cheese and processed cheese as defined in Standard 2.5.4 (with calcium content >320 mg/100 g)*; and (b) edible oil as defined in Standard 2.4.1; and (c) edible oil spreads as defined in Standard 2.4.2; and (d) margarine as defined in Standard 2.4.2; and (e) butter as defined in Standard 2.5.5. *All other cheeses (with calcium content ≤320 mg/100 g) are classified as a category 2 food product.	<u>28</u>

SCHEDULE 5

Nutrient profiling scoring method

1 Steps in determining a nutrient profiling score

- (1) For a food in Category 1 in Schedule 4, calculate the food's –
- (a) baseline points in accordance with item 2 of this Schedule; then
 - (b) fruit and vegetable points in accordance with item 4 of this Schedule (**V points**); then
 - (c) protein points in accordance with item 5 of this Schedule (**P points**); then
 - (d) final score in accordance with item 7 of this Schedule (**the nutrient profile score**).

Editorial note:

Category 1 foods do not score fibre (F) points.

- (2) For a food in Category 2 in Schedule 4, calculate the food's –
- (a) baseline points in accordance with item 2 of this Schedule; then
 - (b) fruit and vegetable points in accordance with item 4 of this Schedule (**V points**); then
 - (c) protein points in accordance with item 5 of this Schedule (**P points**); then
 - (d) fibre points in accordance with item 6 of this Schedule (**F points**); then
 - (e) final score in accordance with item 7 of this Schedule (**the nutrient profile score**).
- (3) For a food in Category 3 in Schedule 4, calculate the food's –
- (a) baseline points in accordance with item 3 of this Schedule; then
 - (b) fruit and vegetable points in accordance with item 4 of this Schedule (**V points**); then
 - (c) protein points in accordance with item 5 of this Schedule (**P points**); then
 - (d) fibre points in accordance with item 6 of this Schedule (**F points**); then
 - (e) final score in accordance with item 7 of this Schedule (**the nutrient profile score**).

2 Baseline points for Category 1 or 2 foods

- (1) Use the information in Table 1 and the formula in subitem (2) to work out the baseline points, for the content of energy and each nutrient in 100 g or 100 mL of the food product (based on the units used in the nutrition information panel).

Table 1
Baseline Points for Category 1 or 2 Foods

<u>Baseline points</u>	<u>Average energy content (kJ) per 100 g or 100 mL</u>	<u>Average saturated fatty acids (g) per 100 g or 100 mL</u>	<u>Average total sugars (g) per 100 g or 100 mL</u>	<u>Average sodium (mg) per 100 g or 100 mL</u>
<u>0</u>	<u>≤335</u>	<u>≤1.0</u>	<u>≤5.0</u>	<u>≤90</u>
<u>1</u>	<u>>335</u>	<u>>1.0</u>	<u>>5.0</u>	<u>>90</u>
<u>2</u>	<u>>670</u>	<u>>2.0</u>	<u>>9.0</u>	<u>>180</u>
<u>3</u>	<u>>1005</u>	<u>>3.0</u>	<u>>13.5</u>	<u>>270</u>
<u>4</u>	<u>>1340</u>	<u>>4.0</u>	<u>>18.0</u>	<u>>360</u>
<u>5</u>	<u>>1675</u>	<u>>5.0</u>	<u>>22.5</u>	<u>>450</u>
<u>6</u>	<u>>2010</u>	<u>>6.0</u>	<u>>27.0</u>	<u>>540</u>

<u>7</u>	<u>>2345</u>	<u>>7.0</u>	<u>>31.0</u>	<u>>630</u>
<u>8</u>	<u>>2680</u>	<u>>8.0</u>	<u>>36.0</u>	<u>>720</u>

Table 1 (continued)
Baseline Points for Category 1 or 2 Foods

Baseline points	Average energy content (kJ) per 100 g or 100 mL	Average saturated fatty acids (g) per 100 g or 100 mL	Average total sugars (g) per 100 g or 100 mL	Average sodium (mg) per 100 g or 100 mL
<u>9</u>	<u>>3015</u>	<u>>9.0</u>	<u>>40.0</u>	<u>>810</u>
<u>10</u>	<u>>3350</u>	<u>>10.0</u>	<u>>45.0</u>	<u>>900</u>

(2) Calculate the baseline points using the following formula –

Total baseline points = (points for average energy content) + (points for average saturated fatty acids) + (points for average total sugars) + (points for average sodium)

3 Baseline points for Category 3 foods

(1) Use the information in Table 2 and the formula in subitem (2) to work out the baseline points, for the content of energy and each nutrient in 100 g or 100 mL of the food product (based on the units used in the nutrition information panel).

Table 2
Baseline Points for Category 3 Foods

Baseline Points	Average energy content (kJ) per 100 g or 100 mL	Average saturated fatty acids (g) per 100 g or 100 mL	Average total sugars (g) per 100 g or 100 mL	Average sodium (mg) per 100 g or 100 mL
<u>0</u>	<u>≤ 335</u>	<u>≤1.0</u>	<u>≤ 5.0</u>	<u>≤ 90</u>
<u>1</u>	<u>>335</u>	<u>>1.0</u>	<u>>5.0</u>	<u>>90</u>
<u>2</u>	<u>>670</u>	<u>>2.0</u>	<u>>9.0</u>	<u>>180</u>
<u>3</u>	<u>>1005</u>	<u>>3.0</u>	<u>>13.5</u>	<u>>270</u>
<u>4</u>	<u>>1340</u>	<u>>4.0</u>	<u>>18.0</u>	<u>>360</u>
<u>5</u>	<u>>1675</u>	<u>>5.0</u>	<u>>22.5</u>	<u>>450</u>
<u>6</u>	<u>>2010</u>	<u>>6.0</u>	<u>>27.0</u>	<u>>540</u>
<u>7</u>	<u>>2345</u>	<u>>7.0</u>	<u>>31.0</u>	<u>>630</u>
<u>8</u>	<u>>2680</u>	<u>>8.0</u>	<u>>36.0</u>	<u>>720</u>
<u>9</u>	<u>>3015</u>	<u>>9.0</u>	<u>>40.0</u>	<u>>810</u>
<u>10</u>	<u>>3350</u>	<u>>10.0</u>	<u>>45.0</u>	<u>>900</u>
<u>11</u>	<u>>3685</u>	<u>>11.0</u>		<u>>990</u>
<u>12</u>		<u>>12.0</u>		<u>>1080</u>
<u>13</u>		<u>>13.0</u>		<u>>1170</u>
<u>14</u>		<u>>14.0</u>		<u>>1260</u>
<u>15</u>		<u>>15.0</u>		<u>>1350</u>
<u>16</u>		<u>>16.0</u>		<u>>1440</u>
<u>17</u>		<u>>17.0</u>		<u>>1530</u>
<u>18</u>		<u>>18.0</u>		<u>>1620</u>
<u>19</u>		<u>>19.0</u>		<u>>1710</u>
<u>20</u>		<u>>20.0</u>		<u>>1800</u>
<u>21</u>		<u>>21.0</u>		<u>>1890</u>

<u>22</u>		<u>>22.0</u>		<u>>1980</u>
<u>23</u>		<u>>23.0</u>		<u>>2070</u>

Table 2 (continued)
Baseline Points for Category 3 Foods

<u>Baseline Points</u>	<u>Average energy content (kJ)</u> <u>per 100 g or 100 mL</u>	<u>Average saturated fatty acids (g)</u> <u>per 100 g or 100 mL</u>	<u>Average total sugars (g)</u> <u>per 100 g or 100 mL</u>	<u>Average sodium (mg)</u> <u>per 100 g or 100 mL</u>
<u>24</u>		<u>>24.0</u>		<u>>2160</u>
<u>25</u>		<u>>25.0</u>		<u>>2250</u>
<u>26</u>		<u>>26.0</u>		<u>>2340</u>
<u>27</u>		<u>>27.0</u>		<u>>2430</u>
<u>28</u>		<u>>28.0</u>		<u>>2520</u>
<u>29</u>		<u>>29.0</u>		<u>>2610</u>
<u>30</u>		<u>>30.0</u>		<u>>2700</u>

(2) Calculate the baseline points using the following formula –

Total baseline points = (points for average energy content) + (points for average saturated fatty acids) + (points for average total sugars) + (points for average sodium)

4 Fruit and vegetable points (V points)

(1) V points can be scored for fruits, vegetables, nuts and legumes including coconut, spices, herbs, fungi, seeds and algae (fvnl) including –

- (a) fvnl that are fresh, cooked, frozen, canned, pickled or preserved; and
- (b) fvnl that have been peeled, diced or cut (or otherwise reduced in size), puréed or dried.

(2) V points cannot be scored for –

- (a) a constituent, extract or isolate of a food mentioned in subitem (1); or
- (b) cereal grains mentioned as a class of food in Schedule 4 of Standard 1.4.2.

Editorial note:

An example of a constituent, extract or isolate under paragraph 4(2)(a) is peanut oil derived from peanuts. In this example, peanut oil would not be able to score V points. Other examples of extracts or isolates are fruit pectin and de-ionised juice.

(3) Despite subitem (2), V points may be scored for –

- (a) fruit juice or vegetable juice as standardised in Standard 2.6.1 including concentrated juices and purees;
- (b) coconut flesh (which is to be scored as a nut), whether juiced, dried or desiccated, but not processed coconut products such as coconut milk, coconut cream or coconut oil; and
- (c) the water in the centre of the coconut.

(4) Calculate the percentage of fvnl in the food in accordance with the appropriate method in Standard 1.2.10 and not the form of the food determined in accordance with clause 6 of this Standard.

Editorial note:

The effect of subitem (4) is to make it a requirement to determine the percentage of fvnI using only the appropriate method in Standard 1.2.10. For this subitem only, it is not necessary to consider the form of the food determined by clause 6 of this Standard.

(5) Use Column 1 of Table 3 if the fruit or vegetables in the food product are all concentrated (including dried).

Editorial note:

For example, if dried fruit and tomato paste are the components of the food product for which V points can be scored, column 1 should be used.

(6) Use Column 2 of Table 3 if –

- (a) there are no concentrated (or dried) fruit or vegetables in the food product; or
- (b) the percentages of all concentrated ingredients are calculated based on the ingredient when reconstituted (according to subclauses 3(3) or (4) of Standard 1.2.10); or
- (c) the food product contains a mixture of concentrated fruit or vegetables and non-concentrated fvnI sources (after following the formula mentioned in subitem (8)); or
- (d) the food product is potato crisps or a similar low moisture vegetable product.

(7) Work out the V points (to a maximum of 8) in accordance with Table 3.

Table 3
V Points

	Column 1	Column 2
Points	% concentrated fruit or vegetables	% fvnI
0	<25	≤40
1	≥25	>40
2	≥43	>60
5	≥67	>80
8	=100	=100

(8) If the food product contains a mixture of concentrated fruit or vegetables and non-concentrated fvnI sources, the percentage of total fvnI must be worked out as follows –

$$\frac{(\% \text{ non-concentrated fvnI}) + (2 \times \% \text{ concentrated fruit or vegetables})}{(\% \text{ non-concentrated fvnI}) + (2 \times \% \text{ concentrated fruit or vegetables}) + (\% \text{ non fvnI ingredient})} \times \frac{100}{1}$$

where –

%non-concentrated fvnI/concentrated fruit or vegetables means the percentage of fvnI in the food determined using the appropriate calculation methods outlined in Standard 1.2.10.

(9) For the formula in subitem (8), potato crisps and similar low moisture vegetable products are taken to be non-concentrated.

5 Protein points (P points)

(1) Use Table 4 to determine the 'P points' scored, depending on the amount of protein in the food product. A maximum of five points can be awarded.

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(2) Food products that score ≥ 13 baseline points are not permitted to score points for protein unless they score five or more V points.

Table 4
P Points

<u>Points</u>	<u>Protein (g) per 100 g or 100 mL</u>
0	≤ 1.6
1	> 1.6
2	≥ 3.2
3	> 4.8
4	> 6.4
5	> 8.0

6 Fibre points (F points)

(1) Use Table 5 to determine the 'F points' scored, depending on the amount of dietary fibre in the food product. A maximum of five points can be awarded.

(2) The prescribed method of analysis to determine total dietary fibre is outlined in clause 18 of Standard 1.2.8.

Table 5
F Points

<u>Points</u>	<u>Dietary fibre (g) per 100 g or 100 mL</u>
0	≤ 0.9
1	> 0.9
2	> 1.9
3	> 2.8
4	> 3.7
5	> 4.7

(3) Category 1 foods do not score F points.

7 Calculating the final score

Calculate the final score using the following formula –

$$\text{Final Score} = \text{baseline points} - (\text{V points}) - (\text{P points}) - (\text{F points})$$

SCHEDULE 6

Required elements of a systematic review

A systematic review must include the following elements –

1 A description of the food or property of food, the health effect and the proposed relationship between the food or property of food and the health effect.

2 A description of the search strategy used to capture the scientific evidence relevant to the proposed relationship between the food or property of food and the health effect, including the inclusion and exclusion criteria.

3 A final list of studies based on the inclusion and exclusion criteria. Studies in humans are essential. A relationship between a food or property of food and the health effect cannot be established from animal and *in vitro* studies alone.

4 A table with key information from each included study. This must include information on –

- (a) the study reference
- (b) the study design
- (c) the objectives
- (d) the sample size in the study groups and loss to follow-up or non-response
- (e) the participant characteristics
- (f) the method used to measure the food or property of food including amount consumed
- (g) confounders measured
- (h) the method used to measure the health effect
- (i) the study results, including effect size and statistical significance
- (j) any adverse effects.

5 An assessment of the quality of each included study based on consideration of, as a minimum –

- (a) a clearly stated hypothesis
- (b) minimisation of bias
- (c) adequate control for confounding
- (d) the study participants' background diets and other relevant lifestyle factors
- (e) study duration and follow-up adequate to demonstrate the health effect
- (f) the statistical power to test the hypothesis.

6 An assessment of the results of the studies as a group by considering whether –

- (a) there is a consistent association between the food or property of food and the health effect across all high quality studies
- (b) there is a causal association between the consumption of the food or property of food and the health effect that is independent of other factors (with most weight given to well-designed experimental studies in humans)
- (c) the proposed relationship between the food or property of food and the health effect is biologically plausible
- (d) the amount of the food or property of food to achieve the health effect can be consumed as part of a normal diet of the Australian and New Zealand populations.

7 A conclusion based on the results of the studies that includes –

- (a) whether a causal relationship has been established between the food or property of food and the health effect based on the totality and weight of evidence; and
- (b) where there is a causal relationship between the food or property of food and the

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health effect:

- (i) the amount of the food or property of food required to achieve the health effect
- (ii) whether the amount of the food or property of food to achieve the health effect is likely to be consumed in the diet of the Australian and New Zealand populations or by the target population group, where relevant.

8 An existing systematic review may be used if it is updated to include –

- (a) the required elements 1 to 6 above for any relevant scientific data not included in the existing systematic review
- (b) the required element 7 above incorporating the new relevant scientific data with the conclusions of the existing systematic review.

Amendment History

The Amendment History provides information about each amendment to the Standard. The information includes commencement or cessation information for relevant amendments.

These amendments are made under section 92 of the *Food Standards Australia New Zealand Act 1991* unless otherwise indicated. Amendments do not have a specific date for cessation unless indicated as such.

About this compilation

This is a compilation of Standard 1.2.7 as in force on **30 October 2014** (up to Amendment No. 150). It includes any commenced amendment affecting the compilation to that date.

Prepared by Food Standards Australia New Zealand on 30 October 2014.

Uncommenced amendments or provisions ceasing to have effect

To assist stakeholders, the effect of any uncommenced amendments or provisions which will cease to have effect, may be reflected in the Standard as shaded boxed text with the relevant commencement or cessation date. These amendments will be reflected in a compilation registered on the Federal Register of Legislative Instruments including or omitting those amendments and provided in the Amendment History once the date is passed.

The following abbreviations may be used in the table below:

ad = added or inserted	am = amended
exp = expired or ceased to have effect	rep = repealed
rs = repealed and substituted	

Standard 1.2.7 was published in the *Food Standards Gazette* No. FSC 80 on 18 January 2013 as part of Amendment No. 138 (F2013L00054 — 7 January 2013) and has since been amended as follows:

<u>Clause affected</u>	<u>A'ment No.</u>	<u>FRLI registration Gazette</u>	<u>Commencement (Cessation)</u>	<u>How affected</u>	<u>Description of amendment</u>
<u>1</u>	<u>138</u>	<u>F2013L00050</u> <u>14 Jan 2013</u> <u>FSC 80</u> <u>18 Jan 2013</u>	<u>18 Jan 2016</u>	<u>rep</u>	<u>Editorial note before clause.</u>
<u>18(1)</u>	<u>150</u>	<u>F2014L01427</u> <u>28 Oct 2014</u> <u>FSC92</u> <u>30 Oct 2014</u>	<u>30 Oct 2014</u>	<u>am</u>	<u>Clause to correct missing subclause number.</u>
<u>Sch 3</u>	<u>150</u>	<u>F2014L01427</u> <u>28 Oct 2014</u> <u>FSC92</u> <u>30 Oct 2014</u>	<u>30 Oct 2014</u>	<u>am</u>	<u>Correct incorrect spelling of 'utilisation' in Part 1.</u>
<u>Sch 6</u>	<u>150</u>	<u>F2014L01427</u> <u>28 Oct 2014</u> <u>FSC92</u> <u>30 Oct 2014</u>	<u>30 Oct 2014</u>	<u>am</u>	<u>Correct incorrect punctuation marks.</u>